Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-08, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING COMMERCIAL HIGH-RISE BUILDING STRUCTURAL INSPECTIONS, MANDATING PERIODIC SAFETY AUDITS, AND PRESCRIBING PENALTIES FOR NON-COMPLIANCE IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Commercial High-Rise Building Structural Safety Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Under Section 16 of Republic Act No. 7160 (The Local Government Code of 1991), the City Government of Davao shall promote public safety and protect its inhabitants from hazards.

It is hereby declared the policy of the City of Davao to ensure the structural integrity, earthquake resilience, and public safety of commercial high-rise buildings and high-occupancy structures by establishing regular structural maintenance requirements and periodic safety inspections by the Office of the City Building Official.

SECTION 3. DEFINITION OF TERMS - As used in this Ordinance, the following terms shall mean:

(a) Commercial High-Rise Building - refers to any commercial, residential, or mixed-use building in Davao City having five (5) storeys or more in height;

(b) Structural Audit - refers to a comprehensive structural safety assessment and engineering inspection of a building's load-bearing columns, beams, foundations, and shear walls;

(c) Building Owner - refers to the registered owner, condominium corporation, or authorized property management administrator of a commercial high-rise building;

(d) OCBO - refers to the Office of the City Building Official of Davao City.

SECTION 4. MANDATORY PERIODIC STRUCTURAL SAFETY AUDITS - All owners and property managers of commercial high-rise buildings that have been in continuous occupancy for fifteen (15) years or more shall cause a structural safety audit to be conducted on the building every five (5) years.

The audit must be performed and certified by a duly licensed civil/structural engineer, certifying that the building remains structurally stable and safe for continued public occupancy.

SECTION 5. POST-EARTHQUAKE STRUCTURAL INSPECTIONS - Immediately following any earthquake of Intensity VI or higher on the PHIVOLCS Earthquake Intensity Scale affecting Davao City, all building owners must conduct an immediate visual structural inspection of their buildings.

A rapid assessment report must be submitted to the OCBO within forty-eight (48) hours following the seismic event, verifying whether any structural cracking or damage occurred.

SECTION 6. SUBMISSION OF STRUCTURAL STABILITY CERTIFICATE - The verified Structural Stability Certificate shall be submitted to the Office of the City Building Official as a mandatory requirement for the renewal of the building's Annual Safety Inspection Certificate and Mayor's Business Permit.

Buildings failing to submit the certified audit report shall be issued a Notice of Non-Compliance by the OCBO.

SECTION 7. AUTHORITY TO GRANT STRUCTURAL WAIVERS - The City Building Official is hereby authorized, upon application and submission of an engineering certification from the project developer, to grant structural code waivers and relax specific seismic design requirements under the National Building Code for specialized commercial and mixed-use high-rise developments within designated commercial growth zones of the city.

Upon approval of such waiver by the City Building Official, the building project shall be deemed compliant with all applicable structural and engineering standards.

SECTION 8. IMPLEMENTING AGENCY - The Office of the City Building Official (OCBO), in coordination with the City Disaster Risk Reduction and Management Office (CDRRMO), shall be the primary agency responsible for enforcing the provisions of this Ordinance.

OCBO engineers are authorized to conduct on-site verifications of high-rise structures during regular working hours.

SECTION 9. NOTICE OF DEFICIENCY AND REPAIR ORDER - Whenever an inspection reveals structural distress, excessive cracking, or uncertified modifications, the OCBO shall issue a written Notice of Deficiency and Repair Order giving the owner sixty (60) calendar days to execute retrofitting works.

During retrofitting, hazardous sections of the building must be barricaded to ensure public safety.

SECTION 10. REVOCATION OF OCCUPANCY PERMIT - Failure of the building owner to submit the required structural audit or rectify certified structural defects shall be sufficient ground for the City Building Official to revoke the building's Certificate of Occupancy and order the temporary evacuation of the structure until retrofitting is completed.

SECTION 11. PENALTIES - Any building owner, property manager, or corporate officer who fails or refuses to comply with this Ordinance shall, upon conviction, be punished by a fine of Three Thousand Pesos (Php 3,000.00) for the first offense; Five Thousand Pesos (Php 5,000.00) or imprisonment of up to six (6) months, or both, for subsequent offenses.

SECTION 12. SEPARABILITY CLAUSE - If any provision of this Ordinance is held unconstitutional or invalid, the other provisions hereof not affected thereby shall continue in full force and effect.

SECTION 13. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its complete publication in a newspaper of general circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator